

Duncan McGee Nefcy, shall be filed and served no later than ten (10) days from the date of this hearing. An answer or reply shall be due no later than thirty (30) days from the date of service. No appearance is required at the hearing on December 3, 2025. The Court will execute the proposed order lodged with the Court on August 20, 2025.

5. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.**

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

6. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

**HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.**

TENTATIVE RULING:

The hearing on Defendant BJ's Restaurant's Demurrer and Motion to Strike is continued, *sua sponte*, to February 18, 2026 at 9:00 a.m. No appearance is required on December 3, 2025.

7. 9:00 AM CASE NUMBER: C25-00170

CASE NAME: ANTOINETTE CLARK VS. HAE RHEE

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: GEORGE HOLLAND
FILED BY: CLARK, ANTOINETTE**

TENTATIVE RULING:

On September 16, 2025 Counsel George Holland filed a Motion to be Relieved as Counsel for Plaintiff Antoinette Clark. On November 24, 2025, this motion was withdrawn. The hearing on December 3, 2025 is vacated. No appearance is required.

8. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AN INTERESTED PERSON
FILED BY:**

TENTATIVE RULING:

The Parties are ordered to appear remotely or in person at the hearing on December 3, 2025 at 9:00 a.m.. The Court is unable to locate the moving papers related to this Motion and requires further information.

9. 9:00 AM CASE NUMBER: C25-01917
CASE NAME: ANENDRA SINGH VS. ALAMO HEALTH MANAGEMENT, LLC
*HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER GRANTING PETITIONER'S PETITION
COMPELLING ARBITRATION
FILED BY: ALAMO HEALTH MANAGEMENT, LLC
TENTATIVE RULING:

The motion by respondent Alamo Health Management is **denied** because it does not meet the requirements of Code of Civil Procedure, § 1008, as set forth below.

Background

Petitioner, Anendra Singh, was employed by respondent, Alamo Health Management, LLC. The contract governing petitioner's employment included an arbitration provision. On April 1, 2025, in accordance with the arbitration provisions in the agreement, petitioner submitted a demand for arbitration before the American Arbitration Association ("AAA") and paid the associated \$350 filing fee.

Petitioner served respondent's agent for service, John Ramsbacher, by email on that same day. Two days later, on April 3, counsel for respondent contacted petitioner's counsel, stating they had been provided a copy of the arbitration demand. (Dyer Decl., ¶14.) On April 7, AAA acknowledged receipt as well, providing an invoice and instructing respondent to pay its \$2,100 share of the filing fees by May 7, 2025. (Dyer Decl., Ex. 3.) On the face of the invoice, the following text appeared:

IMPORTANT NOTE: This arbitration is subject to California Code of Civil Procedure 1281.97, and payment must be paid within 30 days of the initial notice or the AAA will close the parties' case. Pursuant to California Code of Civil Procedure 1281.97, the AAA is unable to extend the payment deadline.

AAA sent a reminder on April 30th. (Dyer Decl., Ex. 4.) Respondent nevertheless failed to make payment within 30 days. On May 29, 2025, petitioner advised respondent that it was in breach, citing the statutory basis for entitlement to fees and costs if a petition to compel were necessary. On June 14, petitioner unequivocally stated an intention to file a petition to compel arbitration. On June 30, the AAA closed its file without prejudice. (Dyer Decl., Ex. 7.)

Petitioner filed the present action to compel arbitration on July 2, 2025, after warning counsel that the filing was happening on the same day. (See Dyer Decl., Ex. 5 ["I am going to file...today in Contra Costa Superior Court"].) A hearing date of October 1, 2025 appeared on the face of the petition. (O'Malley Decl., Ex. F.) Accordingly, any opposition to the petition would have been due in mid-September. The petition was supported by a declaration by counsel, also filed on July 2, 2025.

While petitioner inquired as to whether counsel would accept services on behalf of respondent, counsel only said she would "need to ask." (O'Malley Decl., Ex. G.) On July 4th, after the petition had been filed, respondent stated it would "not oppose arbitration." (O'Malley Decl., Ex. H.) On July 8, 2025, counsel for petitioner emailed the petition to counsel for respondent. (Dyer Decl., ¶¶15-16, Ex. 6.) Counsel for respondent had still not unequivocally stated authorization to accept service. Accordingly, petitioner (through a process server) also dropped off the petition and supporting declaration on July 9, 2025 with Danielle Johnson, who was attending respondent's front desk at the time.

In August, the California Supreme Court issued its opinion in *Hohenshelt v. Superior Court*

(2025) 18 Cal.5th 310, hereinafter "*Hohenshelt*," wherein it rejected lower courts' strict application of section 1281.98's deadlines. No opposition to the petition was filed and therefore, no reply was filed either. As a result, the existence of *Hohenshelt* was not brought to the attention of the Court.

As is the practice of this Court, it posted a tentative ruling the court day prior to the hearing, which no one timely contested. The order that followed was therefore the same at the tentative ruling. The Court noted therein respondent's failure to timely oppose the petition, and granted the petition. On October 8, 2025, the Court signed petitioner's proposed order. The order requires respondent to (1) pay the \$2,100 arbitration initiation fee within ten days, (2) pay petitioner's costs and attorneys' fees incurred in the arbitration, regardless of the outcome on the merits, (3) pay sanctions in the amount of petitioner's fees and costs in bringing this petition, (4) staying the present case, and (5) scheduling a case management conference. Respondent's counsel received an email with the Notice of Entry of Order concerning the foregoing on October 9, 2025. (O'Malley Decl., ¶18, Ex. O.)

On October 20, 2025, respondent filed this motion for reconsideration, arguing the new law set forth in *Hohenshelt*, and the new fact that respondent was never properly served with the petition and was thus unaware of the hearing on October 1, 2025. In support of the motion, respondent provides three declarations. John Ramsbacher, defendant's designated agent for process service, states that he received a letter from the American Bar Association on April 7, 2025, stating the amount of arbitration fees, and that they were due by May 7, 2025. Ramsbacher asserts that the "parties" were attempting to settle the case "before paying any fees." Defendant also submits a declaration from Danielle Johnson, a recruiter who had been working at defendant for just a couple of weeks, and temporarily occupying the front desk, when she was given the summons and petition in this case. Defendant's third declaration is from its counsel, Diane Marie O'Malley, who echoes (and provides support for) the statements by Ramsbacher that parties were attempting to settle before paying arbitration fees.

Petitioner opposes the motion, arguing the motion cites the wrong standard for service of process, and that *Hohenshelt* would not make a difference here because petitioner did not seek to enforce a forfeiture of the right to arbitrate by respondent. Instead, petitioner seeks to compel the parties to arbitrate. Further, petitioner argues that respondent's conduct meets any heightened standard that might apply pursuant to *Hohenshelt*. Petitioner does not contest the timeliness of this motion, though it appears the motion was filed on October 20th, which is eleven days after respondent was served with the Notice of Entry of Order.

On reply, respondent does not address the argument concerning the standard for service of process.

Request for Judicial Notice

Respondent requests judicial notice of (1) the "Statement of Information" filed on April 14, 2025, by Alamo Health Management, LLC, with the Secretary of State, and (2) *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310. The petitioner does not oppose the request, which is **granted**.

Legal Standard

Code of Civil Procedure, § 1008 (a) provides as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon

new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Discussion

1. Service of Process

Respondent contends it was not properly served. The argument is based on the provisions of Code of Civil Procedure, § 415.20, subdivision (b). Petitioner points out that this is a misreading of the statutory scheme allowing for service of an LLC.

Code of Civil Procedure, § 416.40 (b) allows service on “the person designated as agent for service of process in a statement filed with the Secretary of State [...] or a person authorized by the association to receive service of process.” (See also Corp. Code § 17701.16 [personal service on LLC includes delivery to “any individual designated by [the LLC] as agent”].) It appears undisputed that the person identified for service by respondent is Ramsbacher. (Request for Judicial Notice, Ex. A; Ramsbacher Decl., ¶1.) Ramsbacher does not deny that the address where service was made was his office, and identified on the Statement of Information on file with the Secretary of State.

Code of Civil Procedure, § 415.20 allows substitute service in lieu of personal delivery. Subdivision (a) addresses service upon an agent identified in Code of Civil Procedure, § 416.40, such as Ramsbacher. Contrary to respondent’s arguments, that subdivision does not include any reasonable diligence prerequisite to substitute service. It allows substitute service by leaving a copy of the summons and complaint during usual office hours in his or her office with the person who is apparently in charge thereof, and by thereafter mailing a copy. Only when the place served is a mailing address must the person who receives the documents be “informed of the contents thereof.” While the evidence is in conflict on the question of whether Danielle Johnson was informed of the contents (compare O’Malley Decl., Ex. L [“I informed them of the general nature of the papers”] to Johnson Decl., ¶2 [“He did not tell me what the documents were”]), this detail appears to be irrelevant.

The Court does not find that respondent was improperly served. Accordingly, the contention that respondent was improperly served does not constitute a basis for reconsideration.

2. New Law

Any opposition to the petition was due in mid-September. The California Supreme Court’s opinion in *Hohenshelt* was issued in August. Any opposition that was based on *Hohenshelt* could have been provided at the time the opposition was due.